CONFIDENTIALITY AGREEMENT

In Medellín, on_____

THE PARTIES INVOLVED

On the one hand:

Between the undersigned, namely: on the one hand, **RAFAEL AARON VASQUEZ**, of legal age, identified with ID No. 1.125.642.540, acting in his capacity as legal representative of **EBEDIX S.A.S**, a legally constituted company, domiciled in the city of Medellín and identified with NIT 901.699.819-3 (hereinafter referred to as "**EBEDIX**"), and _____, of legal age, identified with ID No. _____**, acting in his capacity as legal representative of **_____**, a legally constituted company, domiciled in the city of _____ and identified with NIT _____ (hereinafter referred to as "_____"), jointly referred to as **THE PARTIES**.

The Parties, as they appear, mutually acknowledge their capacity to enter into this agreement and declare that their respective authorities have not been in any way limited, suspended, or revoked, and therefore,

THE PARTIES STATE

FIRST. That the Parties are interested in exploring possible avenues of collaboration with the potential expectation of entering into one or more contracts (hereinafter, "the Collaboration").

SECOND. That, for this purpose, each Party intends to share with the other certain information, which may or may not be marked as "Confidential," and which may be provided in digital, audio, visual, or electronic format (hereinafter, "the Information").

In consideration of the foregoing, the Parties enter into this agreement in accordance with the following:

CLAUSES

FIRST. PURPOSE

The purpose of this agreement is to establish the terms under which each Party agrees to use and maintain the confidentiality of the other Party's Information to which it has access.

SECOND. NO COMMITMENT TO RESULT

The Parties acknowledge that, as of the date of signing this agreement, there is no obligation or commitment between them to carry out the Collaboration.

They also acknowledge and agree that this agreement does not give rise to any obligation or commitment to carry out the Collaboration.

Consequently, in the event that the Collaboration does not take place, neither Party shall incur any liability nor have the right to receive any compensation or indemnity.

THIRD. DEFINITIONS

Below are the definitions of certain terms that may be used in the management or development of the procedures described in this document. It is important to clarify that these are not intended to replace the use of specialized dictionaries related to the subjects addressed herein, nor those applicable under Colombian law.

"Confidentiality": Refers to the act of strictly maintaining the confidentiality and secrecy of information within THE PARTIES and their affiliated companies, and therefore not disclosing to third parties any technical, financial, economic, or commercial information that THE PARTIES exchange as a consequence of the execution of this agreement, during its term.

"Confidential Information": All audiovisual, written, oral, or graphic information, or information contained in audio, visual, electronic, or electromagnetic formats, and in general, any information disclosed by THE PARTIES, their subsidiaries or affiliates. This includes, but is not limited to, technical information, data models, 3D models, financial, economic, and commercial information related to names of clients or potential partners, business proposals, project plans, business strategies, organizational structure, corporate composition, reports, plans, market projections, pricing information, data, and any other industrial information, along with formulas, mechanisms, patterns, methods, analytical processes, trademarks (registered or unregistered), trade names, drawings, software, data, prototypes, models, data meshes, know-how, working documents, compilations, comparisons, studies, or any other document(s) prepared and maintained as confidential by the providers, their affiliates, or subsidiaries.

"Affiliated Companies": All entities in which THE PARTIES have or may have, directly or indirectly, an ownership interest in the share capital, or in which they have or may have control over the governing bodies or shareholders' or partners' meetings; or those entities in which the shareholders and/or representatives of THE PARTIES have or may have, directly or indirectly, an ownership interest in the share capital or control over the governing bodies or shareholders' or partners' meetings. For the purposes of this definition, "control" means that THE PARTIES and/or their shareholders have the power of direction, management, or control mechanisms, including policies, subcontracting, and the direction of the management and administration of said entity, whether through shares, equity participation, voting rights, or by contract.

“Representatives” applies to all members of the Affiliate and their respective employees, officers, directors, contractors, agents, and advisors (including, but not limited to, counselors, consultants, auditors, and accountants).

FOURTH. OBLIGATIONS REGARDING USE OF INFORMATION; RETENTION OF RIGHTS

The Parties agree to use the Information exclusively for the purpose of analyzing the feasibility of the Collaboration. The Information is confidential to the Parties and, consequently, the Parties agree not to disclose or transmit the Information, in whole or in part, to any person or entity except to their directors, officers, employees, or advisors when required for fulfilling the purpose of this agreement. In such cases, the receiving Party shall inform those recipients of the confidential nature of the Information and, in any case, shall be liable to the other Party for any use made by such persons.

The Parties may not sell, transfer, publish, disclose, display, or otherwise make the Information available to any third party, unless required by competent authorities, in which case the recipient of the Information must promptly notify the disclosing Party.

The Parties also agree not to disclose to any third party—either directly or through individuals who have had access to all or part of the Information—the fact that such Information has been shared, whether directly or through their advisors, the existence of conversations or negotiations related to the Collaboration, or the status of such negotiations.

Each disclosing Party hereby retains all rights, title, and interest, including all intellectual property rights, in and to all of its Information. Any disclosure of such Information under this agreement shall not be construed as an assignment, grant, option, license, or other transfer of any such right, title, or interest of any kind to the receiving Party or to any of its representatives.

FIFTH – REVERSE ENGINEERING

The Parties agree not to perform, carry out, or attempt (nor allow any of their employees, representatives, or Affiliated Companies to do so) any reverse engineering process, or decompile any software, hardware, firmware, data models, data meshes, audiovisual content, videos, photographic material, or any other technological solution provided under this agreement, unless they obtain formal written authorization from the disclosing Party.

SIXTH. EXCEPTIONS TO THE OBLIGATIONS

The confidentiality obligations set forth in this agreement shall not apply to Information for which the receiving Party can demonstrate:

1. That it was in the public domain at the time it was communicated to them, or that it has become publicly available thereafter without any breach of the confidentiality obligation by the Party that provided the Information.
2. That it has prior written consent from the Party that provided the Information to disclose the Information.
3. That it was obtained from a source other than the Party that provided the Information, without any confidentiality obligation.
4. That it was already in possession of the receiving Party without any confidentiality obligation.
5. That it was developed independently.

When the communication or disclosure of all or part of the Information is required by law or mandated by a judicial or administrative order, such action shall be limited to the extent necessary to comply with the law or the mandate. Before making such communication or disclosure, the receiving Party of the Information must provide the disclosing Party with (1) prompt written notice of such requirement, justifying the necessity of the measure and specifying the scope of the disclosure, so that the disclosing Party can, at its sole cost and expense, request a protective order or other remedy; and (2) reasonable assistance, at the sole cost and expense of the disclosing Party, to oppose such disclosure or request a protective order or other limitations on the disclosure.

If, after providing such notice and assistance as required in this document, the receiving Party remains subject to a legal order to disclose any Information, the receiving Party (or its representatives or others to whom such legal order is directed) shall disclose only that part of the Information which, based on the advice of the receiving Party's legal counsel, such legal order specifically requires the receiving Party to disclose, and shall use commercially reasonable efforts to obtain assurances from the relevant court or agency that such Information will be treated confidentially.

SEVENTH. TERMINATION

This Agreement shall come into effect on the date of its signature and will expire three (3) years from that date or earlier if the Parties mutually decide to terminate it. However, the confidentiality obligations arising from this Agreement will remain in effect for the Parties for a period of five years from the expiration of the Agreement. Upon expiration of the Agreement, regardless of the cause, the Parties shall return all previously received Information and destroy all copies of all or part of the Information in their possession or in the possession of those to whom they have provided any part of it, including any notes made thereof.

EIGHTH. ASSIGNMENT

This agreement may not be assigned, in whole or in part, by either Party without their prior written consent. Any attempted assignment or transfer shall be null and void and shall have no legal effect.

NINTH. APPLICABLE RULES, JURISDICTION, AND VENUE

In the event that any contentious issues arise in the interpretation and fulfillment of this Agreement, the Parties agree to adhere exclusively to the terms outlined in this Agreement, which contains the entire understanding reached by the Parties to govern their mutual relationship with respect to the subject matter hereof, and no other agreement or rule may be invoked by either Party and applying the utmost good faith to resolve them in a satisfactory and equitable manner for the rights and interests of the Parties. This Agreement shall be governed in all respects by Colombian law, which shall be the only applicable law. Any difficulty or dispute arising between the contracting parties concerning the application, interpretation, duration, validity, or enforcement of this Agreement shall be submitted to arbitration, in accordance with the laws of the Republic of Colombia, in effect at the time of the request, except for disputes related to the intellectual property of any of the Parties with contracts signed with international entities, which shall be governed by the legislation of the United States of America and in accordance with the Arbitration Rules of WIPO (World Intellectual Property Organization). The Parties grant an irrevocable special power to the Chamber of Commerce of Medellín – Arbitration and Conciliation Center to, upon written request by either Party, designate the arbitrator(s) and the respective procedures and actions in accordance with Article 62 of Law 1563 of 2012 ("Arbitration Statute").

Each Party irrevocably and unconditionally waives, to the maximum extent permitted by applicable law, any right it may have to a jury trial in any legal action, proceeding, cause of action, or violation arising out of or related to this Confidentiality Agreement.

TENTH. REMEDIES

Each Party shall be responsible to the other for all direct damages caused by the breach of this Agreement by that Party or by its administrators, directors, or advisors. Each Party acknowledges and agrees that monetary damages may not be an adequate remedy for any breach or threat of breach of this Confidentiality Agreement by that Party or its representatives. Therefore, in addition to all other remedies available under the law, the non-breaching Party shall have the right to seek specific performance and injunctive relief, as well as other equitable remedies for such a breach or threat of breach, and the Parties hereby waive any requirement for the obtaining or setting of a bond or the demonstration of actual monetary damages in connection with such a claim.

ELEVENTH. OWNERSHIP AND FUTURE BUSINESS

The parties agree that the development of this Agreement does not constitute an obstacle to the development of future business opportunities with the same or different parties, regardless of whether these new business opportunities arise from the transfer of knowledge, materials, and intellectual property shared under this Agreement. All materials developed under this Agreement shall be the intellectual property of the party that incurred the costs of development and registration of such materials, and therefore, they are covered as intellectual property of the party that developed them.

TWELFTH. GENERAL PROVISIONS

This Confidentiality Agreement constitutes the sole and complete agreement of the Parties regarding the subject matter contained in this document and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter. This Confidentiality Agreement may only be amended, modified, or supplemented by a written agreement signed by each Party to this document. If any provision of this Confidentiality Agreement is not enforceable, in whole or in part, the other provisions of this Confidentiality Agreement shall remain enforceable. Any unenforceable provision in part shall be applied to the extent it is valid and enforceable. It is also understood and agreed that no failure or delay by either Party in the exercise of any right, power, or privilege under this document shall operate as a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise of the same or the exercise of any other right, power, or privilege under this document. And in witness whereof, the Parties have signed in duplicate, in the city of Medellín on the __ of _____ of _

By,

_____

RAFAEL AARON VASQUEZ

EBEDIX S.A.S.

Legal Representative

By,

_____

Name: _____

Company: _____

Legal Representative